

CITY OF CHEYENNE
CONTRACT MODIFICATION

APPROVED as to form only:
By John Brodie at 11:22 am, Jan 31, 2025

Contract Modification: #2
Project: 5th Street Bridge Over Crow Creek Design
Project Number: Contract # 7447
Contractor: HDR Engineering, Inc.
Date Prepared: January 17, 2025

Contract # 7447 is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

Evaluation and implementation of design alternatives related to widening the existing bridge structure. This will include re-evaluating the hydraulic and hydrologic analysis and modeling for the project. Design plans will address associated revisions to the traffic signal design, intersection, bridge lighting, signing and striping, and modifications to water, sanitary sewer, and storm sewer utilities. Additional description of the work is provided in Exhibit A, which is attached hereto and incorporated by this reference.

II. New Contract Items

The design of widening the existing bridge structure of 5th Street crossing Crow Creek.

III. Schedule

IV. Summary

Original Contract Amount	\$709,095.60
Previous Modifications	\$32,918.00
Contract Amount Prior to this Modification	\$742,013.60
This Modification	\$224,793.00
New Contract Amount	\$966,806.60

V. GL Account Information

If requesting a modification to the contract price, please list GL account # to cover the balance of this modification (if using more than (1) GL account, list the dollar amount for each respective account):

GL# 020-26-2616-42-43443 Amount: \$224,793.00

[SIGNATURES ON NEXT PAGE]

VI. Approvals

City Project Manager: _____ Date: _____

Consultant/Contractor: _____ Date: _____

City of Cheyenne

DATE: _____

_____/_____
Mayor Patrick Collins / ATTEST: City Clerk Kylie Soden

Amendment No. 2 - Scope of Services

December 19th, 2024

BACKGROUND and ASSUMPTIONS

The City of Cheyenne previously selected HDR Engineering, Inc. to provide Design and Construction Management services for the 5th Street Bridge Over Crow Creek Project. HDR Engineering, Inc. (HDR) and the City of Cheyenne (City) negotiated a baseline Scope of Services, in October 2021. The original scope of services included the design and reconstruction of the intersection of 5th Street and Deming Drive. After the review of the Final Design Plans Submittal the City approached HDR to revise the structure type over Crow Creek and make modifications to other work components to more closely match revised budget constraints.

TASK 3.0 – Final Design (Revisions to Previous Subtasks)

Task 3.1 – Traffic Engineering, Lighting, Signalization

- HDR will revise traffic signal design, intersection, and bridge lighting sheets, signing, and striping sheets, and quantities to reflect the new structure design.
- HDR will revise signing and striping design based on City of Cheyenne inputs about project limits.
 - This work will be in accordance with the MUTCD and the City of Cheyenne Standards

Task 3.2 – Utility Design

- HDR will re-evaluate existing utilities and identify potential conflicts with proposed improvements.
 - Public utilities include water, sanitary sewer, and storm sewer.
 - It is assumed that relocation of water main will be removed from the project
 - It is also assumed that Sanitary Sewer Relocation will not be required.
- Storm sewer design will be updated based on changes to roadway geometry and City of Cheyenne review comments.
 - It is assumed that storm sewer system designed previously is acceptable for City of Cheyenne needs, from a capacity and discharge standpoint.

Task 3.3 – H&H Alternatives Assessment

- HDR has partnered with CivilWorx to performed Hydraulic & Hydrologic Modeling of the Project.
 - CivilWorx will revise the final H&H report to reflect the revised structure type.
 - Refer to enclosed proposal from CivilWorx for more detail

Task 3.8 – Final Design (Plans, Specifications, Estimate)

- HDR will revise and prepare Final Design plans and Specifications for bidding.
 - This includes summary tables for bid items being encountered in the work
 - Cross Section Drawings will be provided for pertinent utility crossing(s) and roadway sections
- Project quantities will be taken from the bid form to generate an Engineer's Estimate
 - HDR will follow the American Association of Cost Estimators guidelines during this effort
- Bid items will be based on Technical Specifications (City of Cheyenne & WYDOT)
- The City will provide front-end documents for bidding (i.e., "front-end" documents such as the advertisement, instructions, bid form, agreement, etc.)

- HDR will provide recommendations to the City on desired milestones and pertinent data such as Contract Time, Liquidated Damages, etc.
- HDR will provide project Special Provisions to supplement the Technical Specifications
- Project will go through the HDR QC process for Quality Control prior to bidding.
- Estimated Total Plan Sheet Count of 55 pages including Title Page, Summaries, P&P Sheets, Structural Plans (Est.20 pages), and Standard Details
- Cross Sections will be provided on 50-foot intervals (Est. 20 pages)
- Final Deliverable will include
 - Stamped / Sealed Plans
 - Project Special Provisions
 - Cost Estimate
- Quality Assurance/Quality Control Review
 - HDR will review plans, documents, specifications, for accuracy and reasonableness.
 - QA/QC comments, responses, and resolutions for drawings and special provisions will be documented and kept on file.
 - QA/QC Review will be completed by an experienced employee with HDR that has had limited involvement with the project and can review the project from a fresh perspective

Task 3.9 – Environmental Clearances

- HDR will prepare a 404 Permit Application to the USACE evaluating overall project impacts to wetlands and/or waters of the US, potential cultural resources, and evaluate for threatened and endangered species. The following assumptions have been made in relation to this task:
 - Work required can be permitted under a Nationwide Permit.
 - No wetland mitigation will be required for the project. If wetland mitigation is deemed to be required, HDR can be provided under additional scope.
 - No historic properties or archaeological sites are present within the study area.
 - No effect to listed threatened or endangered species potentially present within the study area.
 - Habitat survey to confirm presence or absence of potential threatened and endangered species habitat will be conducted for the study area. Species specific or protocol surveys including fish surveys, or a Biological Assessment are not included in this scope, but if required may be negotiated as additional scope.
 - No additional permits for local or state agencies are included in this scope.
- The following item(s) will be provided as deliverable(s):
 - 404 Permit Application – Electronic Copy
 - Aquatic Resources Inventory Report- Electronic Copy
 - GIS Shapefiles of Delineated Wetlands
- The following assumptions have been made:
 - Aquatic Resources Inventory previously completed will be acceptable for USACE/permitting needs.
 - It is assumed that no Federal monies will be used on the project.

TASK 7.0 – Existing Bridge Rehabilitation & Widening Work

Task 7 includes the field bridge inspection, engineering design calculations and plan preparation for the project plans. HDR will produce a plans package including specifications to be included in the plan set & bid booklet for the work associated with upgrading of the structure. The bridge widening will follow AASHTO Standard Specifications for Bridge Design (Load Factor Design) and use the HS 20-44 live loading. The original bridge was designed to the specification.

Task 7.1 –Detailed Bridge Inspection:

- HDR will have a 2-person crew document bridge elements that have deteriorated and are in need of repair on the structure. The deficient or deteriorated bridge elements will be discussed to help determine bridge elements that will be repaired with this project.

Task 7.2 – Bridge Widening Plan Set and Load Rating

- HDR will produce design calculations for rehabilitation elements of the bridge, widening of the existing bridge, a load rating, plans package (plan set) and engineers cost estimate for the bridge work.
- Quality Assurance/Quality Control Review
 - HDR will review documents, specifications, assumptions, and calculations for accuracy and reasonableness.
 - QA/QC comments, responses, and resolutions for structure calculations, and special provisions will be documented and kept on file.
 - QA/QC Review will be completed by an experienced employee with HDR that has had limited involvement with the project and can review the project from a fresh perspective
- HDR will perform Retaining Wall Design for what is anticipated to be a <6' tall retaining wall to replace existing walls adjacent to the trail.

Task 7.3 – Response to Review Comments

- Two reviews by the City will be performed at the 60% and 90% plan completion level. Plans for review will only be submitted in electronic pdf format in 11" x 17" format. No hardcopies will be delivered.

Task 7.4 – Bid Questions

- HDR will answer contractor questions that may arise prior to the bid close date.

ASSUMPTIONS:

- The Transition Details for the roadway approaches are anticipated not to affect more than 50 feet of the existing roadway on the east side of the bridge end. The bridge will tie into new roadway on the west side. If design work requires more effort than described, additional work and budget will be negotiated as an addendum to this contract.
- It is assumed that the bridge will be closed to traffic during construction, including pedestrian traffic.
- Plans for review will only be submitted in electronic pdf format in 11" x 17" format. No hardcopies will be delivered.
- Geotechnical recommendations for foundations and walls will be pulled from previously completed reports

DELIVERABLES:

- 60% Review Plans in PDF format
- 90% Review Plans in PDF format
- Design Calculations & Independent design check
- Load Rating completed using AASHTO BrR software package and WYDOT Load Rating Form
- 100% Plans in PDF format
- Engineers cost estimate

TASK 8.0 – RES/ROW Services

Task 8.1 – Right of Way Acquisition/ Landowner Coordination

- HDR will provide RES Project Management, Review of Plans/Plats, Title Work, Valuation of Compensation (Waiver Valuation), electronic drafting of agreements, and Acquisition and Negotiation Services for the City. The intent of the services is to conduct necessary Real Estate / Right of Way execution of acquisition(s) of project parcels for the City as a non-federal funded project using the City's agreement template(s).
 - HDR's real estate professionals have a proven understanding of negotiating and public outreach with landowners. HDR will assist the City and will assist provide more focus to the project with completion of agreements to impacted landowners. Final design shows an estimated 2 landowners with a total of 2 parcels.
- Landowner Coordination, Title, Valuation, Acquisition
 - Conduct one (1) landowner coordination meeting with the design team and landowner with meeting minutes, max two (2) common landowners
 - Property owner/data research of contact information
 - File structure (electronic / paper) for acquisition and submittal to City
 - HDR to develop the electronic Acquisition agreement docs using City templates (Microsoft Word or PDF)
 - HDR to print and create paper files in accordance with the City (Paper file deliverable)
 - HDR's will conduct Waiver Valuation(s) by use of comparable market analysis report for a max of two (2) parcels
 - Preparation for negotiations for parcels per plans. Project will consist of two (2) common landowners.
 - HDR will create and develop acquisition folders verifying the legal vested owner is accurate to the title research and public records from local County courthouse.
 - HDR assumes to conduct non-abstract title research. A certified title abstract is considered out of scope services.
 - Utilize/ develop electronic agreements/ forms from the City for printing of parcel folder(s) documentation
 - Presenting offers to property owner, with an assumed three (3) substantive contacts max per parcel
 - Conducting negotiations as an agent for the City
 - Discussing owner questions, comments and owner counter offers with City staff.
 - Obtaining necessary signatures on a fee simple acquisition, and temporary easement documents.
 - Provide a monthly status update to City Project Manager as negotiations progress.
 - Submit settled parcel folders bi-weekly.
 - Preparing a record of calls for each property owner contact made by offeror.
 - HDR assumes condemnation services is out of scope.

HDR Deliverables:

- Review of plans, plats, fee simple acquisition/temporary easements, and landowner meeting minutes in effort to perform deliverable services of task.
- Landowner Meeting Minutes
- Title Work – non abstract titles service
- Market Analysis Report – CMA, City to provide notice to proceed based on report
- Waiver Valuations Estimates (2 parcels), Sale Data Report
- Acquisition Agreement documents preparation and final documents will be in Printed Paper, Microsoft Word / PDF format

HDR Assumptions:

- HDR assumes a max of two (2) parcels impacted by the Project
- Full / Review Appraisal Services – is considered out of scope
- Relocation Services – is considered out of scope

- HDR deliverables of task agreements will be in Printed Paper, Microsoft Word / PDF format
- HDR design team to provide plans, plats, and easements in effort to perform deliverable services of task
- City will not provide preparation of acquisition documents nor provide hard copy with a parcel folder. City will only provide HDR templates / example of the agreement documents.
- City will provide notice to proceed based on Market Analysis Report after a one (1) time event review.
- If required, the City will perform closing, title commitment fees, title clearing, recording fees with County Courthouse, and payment to owners
- City will assist with technical guidance and services for:
 - i. Valuation/appraisal, Document preparation, Document audit, Negotiations

Proposed Fee

HDR Engineering, Inc. will provide services as described within this scope for **\$224,793.00**

A detailed breakout can be seen in Attachment A.

See Attached Fee Summary



Project: 5th Street Bridge Over Crow Creek
Subject: Compensation Summary
Task: Amendment No.2

Computed by: HDR Cheyenne Date:12/10/2024
Workbook: Comp.Sched.
Page: 1 of 1

PROFESSIONAL SERVICES - DESIGN			
Task	Labor	Expenses	Total
General Conditions	\$ 25,560.00	\$ 118.00	\$ 25,678.00
Final Design (Revisions to Subtasks)	\$ 57,690.00	\$ 304.00	\$ 57,994.00
Existing Bridge Rehabilitation & Widening Work	\$ 128,770.00	\$ 973.00	\$ 129,743.00
RES/ROW Services	\$ 11,060.00	\$ 318.00	\$ 11,378.00
Subtotals \$ 223,080.00 \$ 1,720.00			
Design Total Not-to-Exceed			\$ 224,793.00
TOTAL PROJECT (Including Subconsultants)			\$ 224,793.00

Level of Effort and Fee Estimate
City of Cheyenne, Wyoming
5th Street Bridge Over Crow Creek - Amendment No.2

	Project Team																	Subconsultant	Expenses						
Work Task	Prj. Principal	QA/QC	PM	Roadway Design Lead	Engineering Tech.	Drainage	Structural Lead	Structural Eng. I	Structural CAD	CAD	RES/ROW	ROW	Environmental Sci.	Project Admin	Clerical	HDR Labor Total	Subconsultant	Mileage	Lodging	Meal Per Diem	Copies	Total Direct Expenses	Total Project		
	M.Oakley	D.Hamilton	T.Mattson	B.Collamer	L.Edwards	B. Noble	L. Rogers	B. Winter	S. Miller	J.Oakley	K.Sisson	M.Schurict	J. Mion	E.Schramm	C. Heer			Mile	Night	\$/Day	\$ 1.00				
Contract Billing Rate	\$ 260.00	\$ 280.00	\$ 195.00	\$ 165.00	\$ 125.00	\$ 165.00	\$ 165.00	\$ 125.00	\$ 145.00	\$ 145.00	\$ 120.00	\$ 120.00	\$ 195.00	\$ 110.00	\$ 105.00			0.677	\$ 125.00	\$ 59.00	\$ 1.00				
1.0 General Conditions	8	12	64	16	0	0	12	0	0	0	0	0	0	16	12	\$25,560		100	0	0	50	\$118	\$25,678		
1.1 Project Management	3		24												8	\$6,300.00						\$ -			
1.2 Quality Control	1	12	8													\$5,180.00						\$ -			
1.3 Budget & Schedule Updates	4		12											16	4	\$5,560.00						\$ -			
1.4 Progress Meetings			20	16			12									\$8,520.00		100			50	\$ 117.70			
																\$0.00						\$ -			
3.0 Final Design (Revisions to Subtasks)	2	0	18	92	90	16	0	0	0	88	0	0	24	0	0	\$50,540	\$7,150	80	0	0	250	\$304	\$57,994		
3.1 Traffic Engineering, Lighting, Signalization			1	8	4					4						\$2,595.00						\$ -			
3.2 Utility Design (Water, Sewer, Storm)			1	4	6	8										\$2,925.00						\$ -			
3.3 H&H Alternatives Assessment(s)			4													\$780.00	\$7,150					\$ -			
3.8 Final Design Plans, Specifications, Quantities, Cost Est.	2		6	80	80	8				80						\$37,810.00					250	\$ 250.00			
3.9 Environmental Clearances (Re-Permitting)			6							4			24			\$6,430.00		80				\$ 54.16			
																\$0.00						\$ -			
7.0 Existing Bridge Rehabilitation & Widening Work	0	0	13	4	0	0	296	361	210	8	0	0	0	0	0	\$128,770		350	4	4	0	\$973	\$129,743		
7.1 Detailed Bridge Inspection			2				16	16								\$5,030.00		350	4	4		\$ 972.95			
7.2 Bridge Widening Design Plan Set & Load Rating			8	4			270	325	198	8						\$117,265.00						\$ -			
7.3 Review Comment Response			1				8	16	8							\$4,675.00						\$ -			
7.4 Bid Questions			2				2	4	4							\$1,800.00						\$ -			
																\$0.00						\$ -			
8.0 RES/ROW Services	0	0	0	0	0	0	0	0	0	20	15	53	0	0	0	\$11,060	\$0	100	0	0	250	\$318	\$11,378		
8.1 Temporary Construction Easements										20	15	53				\$11,060.00		100			250	\$ 317.70			
8.2 ROW Acquisition																\$0.00						\$ -			
																\$0.00						\$ -			
Total Labor Hours per Team Member	10	12	95	112	90	16	308	361	210	116	15	53	24	16	12	215,930	7,150	630	4	4	550	\$ 1,713			
Total Labor Charges per Team Member	\$ 2,600	\$ 3,360	\$ 18,525	\$ 18,480	\$ 11,250	\$ 2,640	\$ 50,820	\$ 45,125	\$ 30,450	\$ 16,820	\$ 1,800	\$ 6,360	\$ 4,680	\$ 1,760	\$ 1,260										
Total Project																							\$	224,793	

December 9, 2024

Mr. Todd Mattson, PE
HDR
7350 Stockman Street, Ste A
Cheyenne, WY 82009

RE: 5th Street Bridge H&H - Refinement

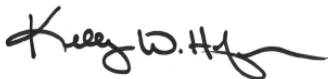
Dear Todd,

Per your request we are providing the following scope change and fee assessment for the 5th Street Bridge Replacement project. The goal of the revised design is to focus on a widening of the existing bridge structure for potential additional lanes and walkways. The revised scope and fee are outline as follows based on our understanding of the changes:

<i>Scope of Work</i>	<i>Fee (Not to Exceed)</i>
<i>Revise hydraulic models to include assessment of not more than three (3) widening options. Provide Channel modification recommendations to mitigate potential rise of base flood elevation (if found).</i>	\$3,500
<i>Review and provide scour mitigation and channel reinforcement for bridge, channel, and greenway as necessary.</i>	\$1,000
<i>Provide amended final drainage report to document the design at SD, DD, and final CD level and sealed with final submittal. Address city comments and update based on design refinements for each phase.</i>	\$2,000

Please feel free to contact me if you have questions or require additional information regarding this proposal.

Respectfully,



Kelly Hafner, P.E.
Senior Project Manager
CivilWorx, LLC